H.B. 8, 2025.]

PUBLIC SERVICE AMENDMENT BILL, 2025

MEMORANDUM

The purpose of this Bill is to amend the Public Service Act [*Chapter 16:01*], align various provisions of the Act to the Constitution. In more detail, the Bill provides as follows:

Clause 1

This clause sets out the Bill's short title.

Clause 2

This clause aligns the preamble of the Bill to the Constitution.

Clause 3

This clause amends various definitions used in the Act.

Clause 4

This clause provides for the establishment and composition of the Public Service Commission. The Commissioners shall be appointed by the President.

Clause 5

This clause sets out the term of office of the Commissioners. The Commissioners shall be appointed for a period of five (5) years which may be renewed once.

Clause 6

This clause provides that a Commissioner may resign from his or her office at any time by giving the President twenty-one (21) days' notice of his or her intention to resign.

Clause 7

This clause repeals section 5 of the Act. The terms and conditions of the Commissioners are provided for in clause 5.

Clause 8

This clause sets out the functions of the Public Service Commission.

Clause 9

This clause provides that the quorum for all meetings of the Commission shall be four (4).

Clause 10

This clause provides that the Secretary of the Commission shall be appointed by the President on the recommendation of the Minister and his or her term of office shall be for a period of five (5) years renewable once.

Clause 11

This clause stipulates that the Minister may give general written policy directives to the Public Service Commission in exercising its functions. It also sets out the conditions which the Minister must take into account when issuing out directives, these conditions includes that the directive must not contravene any provision of this Act, must be done in good faith and must clearly express the national interest at stake.

Clause 12

This clause provides that the Commission shall submit to the Minister an annual report describing fully its operations and activities, the report must be submitted not later than the end of March in the year following the year to which the report relates.

Clause 13

This clause provides that the constitution of the Public Service shall be as specified in section 199(2) of the Constitution.

Clause 14

This clause provides that the management and supervision of members of the Public Service employed in any Ministry, department or other division of the Public Service shall be the responsibility of the Permanent Secretary concerned, subject to the general direction of the appropriate Minister and on the advice of the Commission. It also provides for the supervision of the Permanent Secretaries by the Chief Secretary as contemplated in section 204A (2) of the Constitution.

Clause 15

This clause provides that the terms and conditions of service of Permanent Secretaries shall be as fixed by the President from time to time and the power to discipline or suspend a Permanent Secretary from the Public Service shall vest in the President.

Clause 16

This clause aligns section 18(b) of the Act to section 56 of the Constitution. When considering candidates for appointment and promotion with the Public Service, the Commission shall ensure that there is no discrimination on the ground of their nationality, race, colour, tribe, place of birth, ethnic or social origin, language, class, religious belief, political affiliation, opinion, custom, culture, sex, gender, marital status, age, pregnancy, disability or economic or social status.

Clause 17

This clause provides that the Commission, with the approval of the President given on the recommendation of the Minister responsible for Finance and after consultation with the Minister, shall subject to section 203(4) of the constitution, fix and regulate conditions of service, including salaries, allowances and other benefits of members of the Public Service.

Clause 18

This clause provides that no law shall allow for a reduction of the fixed salary or salary scale applicable to any member of the Public Service unless that member has been found guilty of misconduct or has consented to such reduction in writing.

Clause 19

This clause aligns the Act to section 200(3) of the Constitution. Every member of the Public Service, in the discharge of his or her duties must be non-partisan.

Clause 20

This clause repeals section 23 of the current Act. This clause also provides for a new section 23 providing for a member of public service seeking election to Parliament and Local Authorities.

Clause 21

This clause repeals section 23A of the current Act. This clause also provides for a new section 23A which stipulates that members of the Commission shall disclose their assets to Corporate Governance Unit established in terms of section 5 of the Public Entities Corporate Governance Act [*Chapter 10:31*] upon appointment or reappointment to the Public Service. This is in the interests of transparency and the avoidance of conflict of interest.

Clause 22

This clause provides that members of the Public Service have the right to participate in collective job action, except for members who fall under essential services. Regulations shall prescribe the conditions under which the collective job action may be undertaken by members of the Public Service.

Clause 23

This clause sets out the procedure for maternity leave, a female employee shall be granted a period of ninety-eight (98) days on full pay.

Clause 24

This clause prohibits violence and harassment at the workplace, including violence and harassment of a sexual based nature or gender based nature.

Clause 25

This clause provides that any member who is aggrieved by any verdict reached or penalty imposed upon him or her by the Disciplinary Authority may apply to the Commission for review against the verdict or penalty. In the case where any member is aggrieved by any verdict reached or any verdict imposed upon him by the Commission, he or she may appeal to the Labour Court.

Clause 26

This clause provides that the Minister on the advise of the Public Service Commission may provide for the establishment, equipment, maintenance, administration and operation of a Public Service Academy to provide continuous professional development and training to members of the Public Service. The legal capacity, objects, autonomy and administration of such an institution shall be provided for in a charter granted by the President by proclamation in the *Gazette*.

Clause 27

This clause amends the service regulations making section, giving the Commission with the approval of the Minister, powers to make regulations on the manner in which associations may be registered and the code of conduct for members of the Public Service.

Clause 28

This clause provides for the transitional provisions. The Zimbabwe Institute of Public Administration and Management Act [*Chapter 25:17*], shall be repealed once the Public Service Academy is established in a charter granted by the President in a proclamation in the *Gazette*.

FIRST SCHEDULE: Declaration of assets by members of the Commission and senior staff of Public entities

SECOND SCHEDULE: Minor amendments

BILL

To amend the Public Service Act [*Chapter 16:04*]; to repeal the Zimbabwe Institute of Public Administration and Management Act [*Chapter 25:17*]; and to provide for matters connected therewith or incidental thereto.

ENACTED by the Parliament and the President of Zimbabwe.

1 Short title

This Act may be cited as the Public Service (Amendment) Bill, 2025.

2 Amendment of the Preamble

The preamble to the principal Act is repealed and substituted with the following—

WHEREAS sections 199, 200, 201, 202 and 203 of the Constitution provide as follows—

"199 (1) There is a single Public Service to implement the policies of the Executive branch of the Government, to assist it in the administration of Zimbabwe and to deliver public services to the people.

(2) The Public Service consists of persons employed by the State other than—

(a) members of the security services and any other security service that may be established;

(b) judges, magistrates and persons presiding over courts established by an Act of Parliament;

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(c) members of Commissions established by this Constitution;

(d) the staff of Parliament; and

(e) any other person whose office or post is stated, by this Constitution or an Act of Parliament, not to form part of the Public Service.

(3) An Act of Parliament must provide for the organisation, structure, management, regulation, discipline and, subject to section 203, the conditions of service of members of the Public Service.

200(1) Members of the Public Service must act in accordance with this Constitution and the law.

(2) No member of the Public Service may obey an order that is manifestly illegal.

(3) No member of the Public Service may, in the exercise of their functions—

(a) act in a partisan manner;

(b) further the interests of any political party or cause;

(c) prejudice the lawful interests of any political party or cause; or

(d) violate the fundamental rights or freedoms of any person.

(4) Members of the Public Service must not be office-bearers of any political party.

(5) An Act of Parliament must make provision to ensure the political neutrality of the Public Service.

201. The President must appoint a Minister to be responsible for the Public Service.

202 (1) There is a Public Service Commission consisting of—

(a) a chairperson and deputy chairperson; and

(b) a minimum of two and a maximum of five other members;

appointed by the President.

(2) Members of the Public Service Commission must be chosen for their knowledge of or experience in administration, management or the provision of public services.

203(1) The Public Service Commission has the following functions—

(a) to appoint qualified and competent persons to hold posts in the Public Service, of whom ten per centum shall be persons with disabilities;

(b) subject to section 65(5), to fix and regulate conditions of service, including salaries, allowances and other benefits, of members of the Public Service;

(c) to exercise control and disciplinary powers over members of the Public Service;

(d) to investigate grievances and to remedy the grievances of members of the Public Service concerning official acts or omissions;

(e) to implement measures to ensure effective and efficient performance within, and the general well-being of, the Public Service;

(f) to ensure that members of the Public Service carry out their duties efficiently and impartially;

(g) to advise the President and the Minister on any matter relating to the Public Service;

(h) to promote throughout the Public Service the values and principles set out in this Constitution; and

(i) to exercise any other function that is conferred or imposed on the Commission by this Constitution or an Act of Parliament.

(2) The Public Service Commission, with the approval of the Minister responsible for the Public Service, may make regulations for any of the purposes set out in subsection (1).

(3) The Public Service Commission must exercise its functions in accordance with any general written policy directives which the Minister responsible for the Public Service may give it.

(4) In fixing the salaries, allowances and other benefits of members of the Public Service, the Public Service Commission must act with the approval of the President given on the recommendation of the Minister responsible for finance and after consultation with the Minister responsible for the Public Service.".

3 Amendment of section 2 of Cap.16:04

Section 2 ("Interpretation") of the Public Service Act [*Chapter 16:04*] (hereinafter called "the principal Act") is amended by—

(a) by the repeal and substitution of the following definitions—

"approved services" means—

(a) the service of a government, local authority, provincial council, statutory body, public entity or institutions approved by the Minister after consultation with the Commission; or

(b) other Commissions established in terms of the Constitution; or

(c) the Security Services; or

(d) service of Parliament;

"collective job action" means collective job action as defined in terms the Labour Act [*Chapter 28:01*];

"Commission" means the Public Service Commission constituted in terms of section 202 of the Constitution;

"Commissioner" means a member of the Commission including the Chairperson and the Deputy Chairperson;

"Permanent Secretary" in relation to a member of the Public Service, means the Permanent Secretary of the Ministry in which he or she is employed;

"senior staff members" means any member of the Public Service Commission who is appointed or approved by the President;

"Secretary" means secretary appointed in terms of section 10;

"local authority" means a municipality, town, local board or rural district council, metropolitan and provincial council or any similar body established by or in terms of any enactment;

"Minister" means the Minister responsible for Public Service or any other Minister whom the President may from time to time assign the administration of this Act;

(b) by the insertion of the following definitions—

"association or union" means any organisation registered in terms of the Labour Act [*Chapter 28:01*] to represent the interests of the members of the Public Service and "associations or unions" shall be construed accordingly;

"essential service" in relation to public service means any department, section or part of the Public Service—

(a) the interruption of which endangers immediately the life, personal safety or health of any person; and

(b) that is declared by notice in the *Gazette* made by the Minister in consultation with the Public Service Commission;

"registered association or organisation or union" means an association, organisation or union declared to be a registered association, registered organisation or registered union, as the case may be, in terms of section 24(1);

"security services" means Defence Forces, Police Service, the Prisons and Correctional Service and Intelligence Services and any other security service established by an Act of Parliament;

"senior staff member" means any member of the Public Service whose appointment must be effected, approved or confirmed by the President".

4 Insertion of a new section in Cap.16:04

The principal Act is amended by the insertion of a new section before section 3—

"2A Public Service Commission

(1) It is hereby established a Commission to be known as the Public Service Commission.

(2) The Public Service Commission shall be a body corporate capable of suing and being sued in its corporate name and subject to this Act, or performing all acts that bodies corporate may by law perform.

(3) The President shall appoint—

(a) the Chairperson and Deputy Chairperson; and

(b) minimum of two (2) and a maximum of five (5) other members:

to the Commission of the Public Service Commission in accordance with the provisions of section 202 of the Constitution.

(4) Every Commissioner must be chosen for their knowledge of or experience in administration, management or the provision of public services.

(5) If the Chairperson is for any reason unable to perform his or her functions, the Deputy Chairperson shall perform on his or her behalf in terms of this Act.

(6) In appointing the Commissioners, the President shall ensure that the Chairperson and Deputy shall be of different gender.

(7) In appointing the Commissioners in terms of subsection (3), the President shall observe the provisions of sections 17, 18 and 320 of the Constitution.

(8) Every Commissioner shall observe the provisions of sections 194 and 196 of the Constitution.".

5 New section substituted for section 3 of Cap. 16:04

Section 3 ("Term of office of Commissioners") of the principal Act is repealed and the following section is substituted —

"3 Terms and Conditions of service for Commissioners

(1) Every Commissioner may be appointed for a term of five (5) years which may be renewable for one additional term only.

(2) The terms and conditions of service for the Commissioners shall be as fixed by the President from time to time subject to section 320(6) of the Constitution.

(3) When fixing conditions of service of a Commissioner in terms of subsection (2), the President may direct that any enactment relating to the conditions of service of members of the Public Service shall apply to the conditions of service of the Commissioner, subject to such modifications, exceptions or conditions as the President may specify, and thereupon the enactment concerned shall so apply to the conditions of service of the Commissioner concerned.".

6 Amendment of Section 4 of Cap. 16:04

Section 4 ("Resignation of Commissioners") of the principal Act is amended by the repeal of subsection (1) and substitution of—

"(1) A Commissioner may resign from his or her office at any time by giving the President twenty-one (21) day notice of his or her intention to resign.".

7 Amendment of Section 5 of Cap. 16:04

Section 5 ("Conditions of service of Commissioners") of the principal Act is repealed.

8 New section substituted for section 8 of Cap. 16:04

Section 8 ("Functions of Commission") (1) of the principal Act is repealed and substituted by the following—

"(1) Subject to this act and any other enactment the functions of the Public Service Commission shall be—

(a) to organise, provide structures, manage and regulate the Public Service;

(b) to fix the number of offices, post and grades in the Public Service;

(c) to appoint on merit, qualified and competent persons to hold posts in the Public Service;

(d) subject to section 203(b) of the Constitution of Zimbabwe to fix and regulate conditions of service, including salaries, allowances and other benefits, of members of the Public Service;

(e) to appoint persons from approved services or to second persons to offices, posts and grades in the Public Service;

(f) to conduct examinations for candidates for entry to and promotion within the Public Service;

(g) to exercise control and disciplinary powers over members of the Public Service;

(h) to investigate grievances and to remedy the grievances of members of the Public Service concerning official acts or omissions;

(i) to implement measures to ensure effective and efficient performance within and the general well-being of the Public Service;

(j) to ensure that members of the Public Service carry out their duties efficiently and impartially;

(k) to advise the President and the Minister on any matter relating to the Public Service;

(l) to promote throughout the Public Service the values and principles set out in the Constitution; and

(m) to exercise any other function that is conferred or imposed on the Commission by the Constitution or an Act of Parliament provided that the Commission's independence or effectiveness is not compromised".

9 Amendment of section 9 of Cap. 16:04

Section 9 ("Procedure of Commission") of the principal Act is amended by the insertion of the following subsections, the existing section becoming subsection (1)—

"(2) The quorum for all meetings of the Commission shall be four (4).

(3) Subject to the Constitution, any decision of the Commission requires the concurrence of a majority of the Commission's members who are present when the decision is taken.".

10 Amendment of section 10 of Cap. 16:04

Section 10 ("Secretary and staff of Commission") of the principal Act is repealed and substituted by the following—

"10 Secretary and Staff of Commission

(1) The Secretary of the Commission shall be appointed by the President on the recommendation of the Minister.

(2) The term of office of the Secretary to the Commission is a period of up to five (5) and is renewable once only subject to competence, performance and delivery.

(3) The Secretary for the Commission shall be the Secretary to the Service Commissions.

(4) The Secretary of the Commission shall be the Accounting Officer for the Commission.

(5) The Commission shall appoint staff of the Commission as may be necessary for the proper exercise of the Commission's functions.

(6) The office of the Secretary of the Commission referred to in subsection (1) and other staff referred to subsection (7) shall be public offices but shall not form part of the Public Service.

(7) Subject to this section, the control and supervision of the staff of the Commission shall be exercised by the Secretary of the Commission under the direction of the Commission.".

11 Amendment of section 11 of Cap. 16:04

Section 11 ("Directions to Commission") of the principal Act is amended by the repeal of subsection 1 and substitution of the following—

"(1) The Minister may give the Commission such general directions relating to the policy the Commission is to observe in the exercise of its functions as the Minister considers to be necessary in the national interest, which policy directions must—

(a) not be inconsistent with any provision of this Act; and

(b) be issued in good faith, apply prospectively and not retrospectively, and be of general applicability; in particular the policy directions—

(i) must not be issued in relation to any particular application or appeal pending before the Commission and must not apply so as to influence or direct the Commission on the outcome of any particular application, appeal or other matter that is being considered by the Commission immediately before the directions are issued; or

(ii) must not prejudice the application of the rules of natural justice by the Commission in the exercise of its quasi-judicial functions;

(c) clearly delimit the scope of their application and must otherwise not be vague or ambiguous in their terms; and

(d) clearly express the national interest at stake;

(e) must be clear (whether expressly or by necessary implication) that they apply or are in force for a fixed or indefinite period, or that they expire on the happening of any event.".

12 Amendment of section 12 of Cap. 16:04

Section 12("Reports of Commission") of the principal Act is amended by the repeal of subsection (1) (a) and the substitution of the following—

"(1)(a) shall submit to the Minister an annual report describing fully its operations and activities, the report being submitted not later than the end of March in the year following the year to which the report relates; and"

13 Amendment of section 14 of Cap. 16:04

Section 14("Composition of Public Service") of the principal Act is repealed and substituted by the following—

"14 Composition of Public Service

The composition of the Public Service shall be as specified in section 199(2) of the Constitution.".

14 Amendment of section 15 of Cap. 16:04

Section 15 ("Responsibility for administration of Public Service and divisions thereof") of the principal Act is amended—

(a) by the repeal of paragraph (e) and the substitution of the following—

"(e) the management and supervision of members of the Public Service employed in any Ministry, department or other division of the Public Service shall be the responsibility of the Permanent Secretary concerned, subject to the general direction of the appropriate Minister for which purpose he or she shall seek the advice of the Commission."

(b) by the insertion of a new subsection with existing becoming subsection (1) as follows—

"(2) Permanent Secretaries shall discharge their duties under the supervision of the Chief Secretary and under such general direction as may be given by the Chief Secretary as contemplated in section 204A (2) of the Constitution.".

15 Amendment of section 16A of Cap. 16:04

Section 16A ("Removal of Heads of Ministry from Public Service") of the principal Act is repealed and substituted by the following—

"16A Terms and Conditions of Service of Permanent Secretaries

(1) Permanent Secretaries are appointed by the President after consultation with the Public Service Commission.

(2) The term of office of a Permanent Secretary is a period of up to five (5) years and is renewable once only subject to competence, performance and delivery.

(3) The terms and conditions of service of Permanent Secretaries shall be as those fixed for such office bearers of equivalent rank by the President from time to time.

(4) The power to discipline or suspend a Permanent Secretary, or to dismiss, discharge or otherwise remove a Permanent Secretary from the Public Service shall vest in the President in consultation with the Commission.".

16 Amendment of section 18 of Cap. 16:04

Section 18 ("appointments and promotions") of the principal Act is amended—

(a) by the repeal of paragraph (b) and the substitution of the following paragraph—

"(b) ensure that there is no discrimination on such grounds as their nationality, race, colour, tribe, place of birth, ethnic or social origin, language, class, religious belief, creed, political affiliation, opinion, custom, culture, sex, gender, marital status, age, pregnancy, disability or economic or social status.";

(b) by the insertion after paragraph (b) of the following paragraph—

"(c) observe the provisions of sections 17 and 18 of the Constitution.".

17 Amendment of section 19 of Cap. 16:04

Section 19 ("Conditions of service of members of Public Service") of the principal Act is amended—

(a) by the repeal of subsection (1) and the substitution of—

"(1) The Commission, with the approval of the President given on the recommendation of the Minister responsible for Finance and after consultation with the Minister, shall subject to section 203 (4) of the Constitution, fix and regulate conditions of service, including salaries, allowances and other benefits of members of the Public Service.

(b) by the repeal of subsection (3);

(c) in subsection (5) by the deletion of the words "dismissal or discharge" and substitution of "termination".

18 Amendment of section 22 of Cap. 16:04

Section 22 ("Rights of members of Public Service and other persons to remuneration and pension benefits") of the principal Act is amended by the insertion of a new subsection, with the existing section becoming subsection (1), which provides as follows—

"(2) No law shall provide for or permit a reduction in the fixed salary or salary scale applicable to any member of the Public Service except when—

(a) such member has been found guilty of misconduct; or

(b) such member has consented to such reduction in writing; or

(c) such reduction is consequent upon a general restructuring of the Public Service or any part thereof made upon adequate notification to the affected members thereof and as far as possible in consultation with them."

19 Insertion of a new section in Cap. 16:04

The principal Act is amended by the insertion of a new section before section 23—

"22A Civil Servants to be non-partisan

(1) Any member of the Public Service who—

(a) contravenes section 200(3) of the Constitution in the exercise of his or her functions of such a member;

(b) contravenes section 200(4) of the Constitution:

may be charged with misconduct for such contravention.

(2) Subsection (1) (a) does not apply to a member of the Public Service who exercises his or her rights of freedom of association and expression otherwise than in the exercise of his or her duties.".

20 New section substituted for section 23 of Cap. 16:04

Sections 23 ("Member of Public Service seeking election to local authority") of the principal act is repealed and is substituted by the following—

"23 Member of Public Service seeking election to local authority

Any member seeking election to Parliament and Local Authorities shall be subjected to provisions of section 129(h) and 278(1) of the Constitution respectively.".

21 New section substituted for section 23A of Cap. 16:04

Section 23A ("Member of Public Service seeking election to Parliament") of the principal act is repealed and is substituted by the following—

"23A Disclosure of Assets

Members of the Board, Commissioners and senior staff members of the Public Service shall disclose their assets upon appointment or re-appointment as specified in the First Schedule which shall come into effect once the President has published a Statutory Instrument to that effect.".

22 Amendment of section 24 of Cap. 16:04

Section 24 ("Recognised associations and organisations") of the principal Act is amended—

(a) by the repeal of subsection (1) and (2) substitution of the following—

(1) The provisions of Part VII of the Labour Act [*Chapter 28:01*] shall apply *mutatis mutandis* to the registration of Public Service Unions or Associations.

(b) by the insertion of the following new subsections after subsection 5—

(6) Subject to this Act, members of the Public Service have the right to participate in collective job action unless they are employed in any department, service or section of the Public Service that has been declared to be an essential service.

(7) Regulations made under this Act shall prescribe the conditions under which the collective job action may be undertaken by members of the Public Service, for which purpose the Commission may appoint persons on a (permanent or *ad hoc* basis) employed within or outside the Public Service to act in the same role as labour officers in terms of the Labour Act.

23 Insertion of a new section in Cap. 16:04

The principal Act is amended by the insertion of a new section after section 24—

"Maternity leave

24A (1) Unless more favourable conditions have otherwise been provided for in any employment contract or in any enactment, maternity leave shall be granted in terms of this section for a period of ninety-eight (98) days on full pay to a female employee.

(2) On production of a certificate signed by a Registered Medical Practitioner or State Registered Nurse certifying that she is pregnant, a female employee may proceed on maternity leave not earlier than the forty-fifth day and not later than the twenty-first day prior to the expected date of delivery.

(3) Any maternity leave requested in excess of the limits prescribed in this section may be granted as unpaid maternity leave.

(4) Unless the employer grants sick leave for medical reasons other than maternity, sick leave may not be granted once paid maternity leave has begun or during a period of unpaid maternity leave.

(5) During the period when a female employee is on maternity leave in accordance with this section, her normal benefits and entitlements, including her rights to seniority or advancement and the accumulation of pension rights, shall continue uninterrupted in the manner in which they would have continued had she not gone on such leave, and her period of service shall not be considered as having been interrupted, reduced or broken by the exercise of her right to maternity leave in terms of this section.

(6) A female employee who is the mother of a suckling child shall, during each working day, be granted at her request at least one hour or two half-hour periods, as she may choose during normal working hours,

for the purpose of nursing her child, and such employee may combine the portion or portions of time to which she is so entitled with any other normal breaks so as to constitute longer periods that she may find necessary or convenient for the purpose of nursing her child.

(7) Any person who contravenes this section shall be guilty of an unfair labour practice.

(8) Notwithstanding subsections (6) and (7), the grant of breaks during normal working time to a female employee for the purpose of nursing her child shall be made in accordance with all the exigencies of her employment and nothing done to prevent any disruption of normal production processes or any interference with the efficient running of an undertaking or industry shall be held to be in contravention of subsection (6).

(9) A female employee shall be entitled to the benefits under subsection (6) for the period during which she actually nurses her child or six months, whichever is the lesser.".

24 Insertion of a new section in Cap. 16:04

The principal Act is amended by the insertion of a new section before section 25—

"25A Harassment at workplace

(1) The conduct of members of the Public Service in relation to harassment, including sexual harassment of fellow members of the Public Service in the workplace or elsewhere shall be prescribed in regulations fixing appropriate penalties, including dismissal, for such conduct:

Provided that criminal prosecution in addition to disciplinary proceedings against members who offend against such regulations, must (subject to section 278 of the Criminal Law Code) be instituted where appropriate."

(2) Each Ministry must establish a desk (to be called the "gender-mainstreaming desk") for the receipt of complaints of harassment, including sexual harassment, by any member of the Public Service employed in that Ministry.".

25 Amendment of section 26 of Cap. 16:04

Section ("Appeals to Labour Court") of the principal Act is repealed and substituted with the following—

"26 Appeals to Labour Court

(1) Any person who is aggrieved at any order, recommendation, finding or decision of the Commission may request for a review of the order within, fourteen (14) days of the date of the order, recommendation, finding or decision concerned.

(2) Subject to subsection (1) an aggrieved person may no later than twenty-one (21) days after the decision of the Commission may on—

(a) any verdict reached; or

(b) any penalty imposed upon him:

appeal against the verdict or penalty to the Labour Court.

(3) Until the appeal is determined the noting of an appeal in terms of subsection (2) shall not suspend the decision of the Commission.

(4) Upon an appeal the Labour Court may—

(a) decide the issue in favour of the disciplinary Authority or Commission, as the case may be; or

(b) refer the decision back to the Disciplinary Authority or Commission, as the case may be for reconsideration (whether with or without directions on how the decision is to be reconsidered) on any one or more of the following grounds—

(i) allowing extraneous or irrelevant considerations to affect the decision;

(ii) failure to take into account relevant considerations in arriving at the decision;

(iii) any material mistake of fact or law that tainted the decision;

(iv) gross but unwilful irregularity in the proceedings or the decision of any person involved in making or contributing to the decision;

(v) interest in the cause, bias, malice or corruption on the part of any person involved in making or contributing to the decision:

Provided that the Court shall not make a finding on this ground without affording the Disciplinary Authority or the Commission, as the case may be, an opportunity to respond to such finding:

(c) where there is a substantive factual despite that cannot be resolved by the Court on the evidence before it, refer the matter back to the Disciplinary Authority or the Commission, as the case may be, with a direction to the Commission or Disciplinary Authority to investigate the matter further and make a report and recommendations to the Court (on the basis of which the Court shall make its decision under paragraph (a).

(5) A person who is aggrieved by the decision of the Commission or Disciplinary Authority under subsection (4), may refer the matter for review by the Labour Court, whereupon it may—

(a) uphold the decision of the Commission or Disciplinary Authority; or

(b) overturn the decision of the Commission or Disciplinary Authority (with or without directions on how to proceed with the application) on any one or more of the following grounds—

(i) allowing extraneous or irrelevant considerations to affect the decision; or

(ii) failure to take into account relevant considerations in arriving at the decision, or

(iii) any material mistake of fact or law that tainted the decision;

(v) gross but unwilful irregularity in the proceedings or the decision of any person involved in making or contributing to the decision;

(vi) interest in the cause, bias, malice or corruption on the part of any person involved in making or contributing to the decision; or

(c) where there is a substantive factual despite that cannot be resolved by the Labour Court on the evidence before it, or where the matter had previously been referred by the Labour Court to the Disciplinary Authority or the Commission (as the case may be) for investigation and report but the Labour Court is not satisfied with the report for any reason, refer the matter to the Disciplinary Authority or the Commission (as the case may be) with a direction to the Disciplinary Authority or the Commission to investigate the matter further and make a further report and recommendations to the Court (on the basis of which report the Court may then proceed in terms of paragraph (a) or (b)."

26 Insertion of a new section in Cap. 16:04

The principal Act is amended by the insertion of a new section after section 26—

"26A Public Service Academy

(1) The Minister acting on the advise of the Public Service Commission may provide for the establishment, equipment, maintenance, administration and operation of a Public Service Academy to provide continuous professional development and training to members of the Public Service.

(2) For the purpose of establishing, equipping, maintaining, administering and operating the Public Service Academy referred to in subsection (1), the Minister acting on the advise of the Commission may—

(a) enter into agreements and execute contracts; and

(b) provide suitable premises, equipment and amenities for the Academy; and

(c) with the approval of the Minister responsible for finance, make grants of money to the Academy; and

(d) subject to any charter referred to in subsection (3), appoint a board of management from members nominated by the Commission to control, manage and administer the Academy; and

(e) do all such other things as, in the Minister and Commission's opinion, are necessary or desirable for the purpose.

(3) The legal capacity, objects, autonomy and administration of the Academy referred to in subsection (1) shall be provided for in a charter granted by the President by proclamation in the *Gazette*.

(4) All expenditure incurred by the Minister in terms of subsection (1) shall be met from moneys appropriated for the purpose by Act of Parliament.".

27 Amendment of section 31 of Cap. 16:04

Section 31 ("Service regulations") of the principal Act is amended—

(a) in subsection (1) by the deletion of "concurrence" and the substitution of "approval".

(b) in paragraph (2) (*a*), by the deletion of the word "classification" and substitution of "grading"

(c) by the insertion after paragraph (*f*) of the following paragraph—

"(*f1*) collective bargaining in the Public Service;"

(d) after paragraph (*l*) by the insertion of the following paragraphs—

"(*l1*) regular disclosures of assets by members of the Public Service;

(*l2*) code of conduct for members of the Public Service;".

28 Repeal of Cap 25:17 and transitional provisions

The principal Act is amended by the insertion of a new section after section 33 as follows—

"34 Transitional provisions

In this section—

"appointed day" means the date on which the Public Service Academy is established in a charter granted by the President by proclamation in the *Gazette*;

"institute" means the Zimbabwe Institute of Public Administration and Management established in terms of the Zimbabwe Institute of Public Administration and Management Act [*Chapter 25:17*];

"transferred member" means a person who is transferred from the institute to the Commission in terms of subsection (3).

(2) The Zimbabwe Institute of Public Administration and Management Act [*Chapter 25:17*] shall be repealed once the Public Service Academy is established by a charter granted by the President in a proclamation in the *Gazette*.

(3) Every member of the institute who, immediately before the appointed day, was employed by the institute shall, on the appointed day—

(a) be deemed to have been transferred to the Academy;

(b) be engaged for employment with the Academy on terms and conditions not less favourable than those that were applicable to him or her immediately before his or her engagement.

(4) Any regulations and circulars governing the terms and conditions of service of transferred members of the institute which, immediately before the appointed day, were in force under the repealed Act shall continue in force until amended, varied or repealed by regulations made in terms of section 31 or a collective bargaining agreement, and in the event of any inconsistency between such regulations and circulars and any law governing the terms and conditions of employees generally, the former shall prevail.

(5) Any reference to the institute in any regulation, notice, circular or any other document referred to in subsection (4) shall be construed, with such changes as may be necessary, as a reference to Commission.

(6) The assets and rights of the institute which—

(a) before the appointed day, were used by or otherwise connected with the institute; and

(b) are specified by the Minister by notice in a statutory instrument:

together with any liabilities or obligations attaching to them, shall be transferred with effect from the date specified in the notice, exclusively to the Academy.

(7) If on the appointed day—

(a) there were any disciplinary proceedings in terms of the repealed Act pending against a person who, but for this subsection, would be a transferred member, such proceedings shall continue after the appointed day in all respects as if such person is a member of the Public Service and, if the proceedings result in the dismissal of that person, that person shall not be transferred to the Commission;

(b) any promotion or advancement was being processed in terms of the repealed Act in relation to any transferred member, such promotion or advancement shall be processed and completed after the appointed day in all respects as if such transferred member is a member of the Public Service and, if the promotion or advancement proceedings result in the promotion or advancement of that transferred member, that member shall be transferred to the Commission at the equivalent grade or post;

(c) any civil proceedings that on the appointed day, were pending against any transferred member in his or her official capacity shall continue and be completed after the appointed day in all respects as if such transferred member is a member of the Academy.".

FIRST SCHEDULE (*Section 23A*)

1. For the purposes of this Schedule—

"associate" means in relation to a person, has the meaning given to it in terms of section 2 of the Public Entities Corporate Governance Act [*Chapter 10:31*];

"Unit" means the Corporate Governance Unit established in terms of section 5 of the Public Entities Corporate Governance Act [*Chapter 10:31*].

Declaration of assets by members of the Commission and senior staff of Public Entities

2. (1) In the interests of transparency and the avoidance of conflicts of interest, as soon as possible after being appointed or re-appointed (and in any event within three months after the appointment or re-appointment) as—

(a) a member of the board of the Public Service shall provide to the Unit; or

(b) a senior staff member of the Public Service shall provide to the Commission and Unit;

a written declaration listing in full—

(i) all immovable property which the member or senior staff member owns, leases or in which he or she has any other interest; and

(ii) any item of movable property, exceeding one hundred thousand dollars ($100 000) or such greater value as may be prescribed, which the member or senior staff member owns, leases or in which he or she has any other interest; and

(iii) any business in which the member or senior staff member has an interest or which he or she plays any part in running; and

(c) in relation to every associate of the member or senior staff member—

(i) all immovable property owned or leased by the associate, or in which the associate has any other interest; and

(ii) any item of movable property, exceeding one hundred thousand dollars ($100 000) or such greater value as may be prescribed, which the associate owns, leases or in which he or she has any other interest; and

(iii) any business in which the associate has an interest or which he or she plays any part in running and stating in each case the nature of the interest in the property or business concerned.

(3) The part of the declaration referred to in subsection (2)(c) must either be countersigned by the associate concerned, or be endorsed in writing by the member or senior staff member concerned to be true to the best of his or her knowledge and belief.

(4) In addition to the declaration required by subsection (2), every member of the board of the Public Service and every senior staff member shall provide to the Unit a further written declaration setting out the matters referred to in that subsection—

(a) on the anniversary of his or her appointment or re-appointment to the board or to the post in question; and

(b) within two months after ceasing to be a member of the board or ceasing to be a senior staff member.

(5) If—

(a) a member of the board of the Public Service or senior staff member refuses to provide to the Unit with any declaration required by subsection (3) or (4); or

(b) a member of the board of the Public Service or senior staff member thereof intentionally fails to list any property or interest in a declaration provided to the Unit in terms of subsection (2); or

(c) the member or senior staff member shall thereupon cease to be a member of the board or (where the contravention relates to subsection (3)(b)) be disqualified for reappointment, or, in the case of a senior staff member, cease to be employed in that or any other capacity in the entity concerned or (where the contravention relates to subsection (3)(b)) be disqualified for re-employment.

(6) A declarant who refuses or omits to make a declaration within the time specified shall be given a further opportunity to make it after being served with a written warning signed by or on behalf of the Chairperson of the Public Service Commission, and upon failure or refusal to do so, the Commission shall institute misconduct proceedings against the declarant.

(7) A declarant whom it is believed intentionally failed to list any property or interest in a declaration provided to the Office of the President and Commission shall be afforded an opportunity by the Unit to explain the omission, and if the Unit despite

the explanation, if given, is nevertheless of the opinion that the omission was intentional the Commission shall institute misconduct proceedings against the declarant with a view to terminate the service of the declarant if he or she is found to be guilty.

(8) If as a result of any misconduct enquiry under this Schedule it is found that any asset was acquired as a result of the commission of a serious offence as defined in the Money laundering Act the Unit shall instruct the National Prosecuting Authority to institute civil asset forfeiture proceeding in relation to that asset.

(9) For the purposes of misconduct inquiry under this Schedule the declarant has the burden of proving on balance of probabilities that his or her failure to make the declaration was not willful or his or her omission to list an asset in the declaration was not intentional, as the case maybe.

(10) The duty to disclose extends to assets furnished to the declarant by or with the assistance of the State

SECOND SCHEDULE OF MINOR AMENDMENTS (*Sections 2 and 16A*)

PROVISION EXTENT OF AMENDMENT

Section 2	by the deletion of "head of Ministry" wherever it occurs and substitution of "Permanent Secretary"
Section 16A	by the deletion of "head of Ministry" wherever it occurs and substitution of "Permanent Secretary"